



CHAPTER ix

An Act to empower the Railway Clearing System Superannuation Fund Corporation to allow Coras Iompair Eireann to subscribe to the fund of that Corporation in respect of certain contributing members to the fund passing into their service and for other purposes.
[30th April 1959.]

WHEREAS by the Railway Clearing System Superannuation Fund Acts 1873 to 1948 (hereinafter referred to as "the said Acts") provision was made for the establishment and carrying on of a fund (hereinafter referred to as "the fund") for the payment of superannuation allowances to the salaried officers and clerks of a group of bodies referred to in the said Acts including railway companies parties to the clearing system mentioned in the Railway Clearing Act 1850:

13 & 14 Vict.
c. xxxiii.

And whereas the fund is vested in a body incorporated under the said Acts by the name of the Railway Clearing System Superannuation Fund Corporation (hereinafter referred to as "the Corporation"):

And whereas provision was made by the said Acts for railway companies parties to the said clearing system to become special subscribers to the fund in respect of salaried officers or clerks received by them into their service when already contributing members to the fund:

And whereas by the Transport Act (Northern Ireland) 1958 enacted by the Parliament of Northern Ireland and the Great Northern Railway Act 1958 enacted by the Oireachtas provision is made to give effect to arrangements for the dissolution of the Great Northern Railway Board (hereinafter referred to as "the board") and to vest its undertaking on the first day of October nineteen hundred and fifty-eight partly in the Ulster Transport

Authority and partly in Coras Iompair Eireann in so far as the railways comprising such undertaking are situate in Northern Ireland and the Republic of Ireland respectively:

And whereas the board are subscribers to the fund in respect of the salaried officers and clerks in their service who are contributing members to the fund:

And whereas Coras Iompair Eireann (hereinafter referred to as "the Irish company") are desirous of becoming special subscribers to the fund in accordance with the said Acts and the rules made thereunder in respect of the salaried officers and clerks in the service of the board who are contributing members of the fund and who will pass into the service of the Irish company pursuant to the said Great Northern Railway Act 1958 but the said clearing system no longer exists and the Corporation are not empowered under the said Acts to allow the Irish company to become special subscribers to the fund:

And whereas in order to enable the said last-mentioned salaried officers and clerks to continue as contributing members to the fund it is expedient that the Corporation should be empowered to allow the Irish company to become special subscribers to the fund:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Railway Clearing System Superannuation Fund Act 1959.

(2) The Railway Clearing System Superannuation Fund Acts 1873 to 1948 and this Act may be cited together as the Railway Clearing System Superannuation Fund Acts 1873 to 1959.

Interpretation.

2. In this Act—

"the board" means the Great Northern Railway Board constituted under the Great Northern Railway Act (Northern Ireland) 1953 and the Great Northern Railway Act 1953 (Act No. 17 of 1953 of the Oireachtas);

"the Corporation" means the Railway Clearing System Superannuation Fund Corporation;

"the fund" means the fund of the Corporation;

"the Irish company" means Coras Iompair Eireann incorporated by the Transport Act 1950 (Act No. 12 of 1950 of the Oireachtas);

"the said Acts" means the Railway Clearing System Superannuation Fund Acts 1873 to 1948.

3.—(1) As from the passing of this Act the Corporation shall have power to allow the Irish company to become special subscribers to the fund in respect of the salaried officers and clerks who will pass into the service of the Irish company in consequence of the vesting in the Irish company pursuant to section 7 of the Great Northern Railway Act 1958 (Act No. 20 of 1958 of the Oireachtas) of the part of the undertaking of the board situate in the Republic of Ireland and who immediately before the first day of October nineteen hundred and fifty-eight were contributing members of the fund and in the employ of the board.

Power for Corporation to accept Irish company as special subscribers to fund.

(2) The provisions of the said Acts and the rules made thereunder shall be binding on the Irish company for so long as they are special subscribers to the fund.

4. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by in the first instance the Corporation and the amount so paid shall be recoverable by the Corporation from the Irish company as a simple contract debt due by the Irish company to the Corporation.

Costs of Act.

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